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The European Union as a Template for Regional Integration? The Case of ASEAN and Its Committee of Permanent Representatives*

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Abstract

This article compares the decision-making structures of the Association of Southeast Asian Nations (ASEAN) with those of the European Union (EU). It asks whether the EU is an appropriate template for ASEAN or whether, given the apparently unique circumstances of European integration and Southeast Asian regionalism, analogies between the two are counterproductive. Attempts, for example, to model ASEAN's Committee of Permanent Representatives (CPR) on the EU's Committee of Permanent Representatives (Coreper) throw into relief the latter's uniquely consensual modus operandi. Can this consensus be replicated by ASEAN simply by institutional mimesis? First, the EU's evolution is briefly outlined; second, ASEAN's institutional architecture is set in the context of the ASEAN Charter's innovations that most invite comparison with the EU; and third, the two organizations are compared by assessing a 'zone of discretion' between setting ambitious, but realistic, goals for ASEAN's greater integration and adopting structures that might be inappropriate to ASEAN.

Introduction

News that a huge plume of volcanic ash in April 2010 had forced postponement of a visit to Brussels by the newly created Committee of Permanent Representatives (CPR) of the Association of Southeast Asian Nations (ASEAN) in response to a European Union (EU) invitation[1] to meet their counterparts in the EU's Committee of Permanent Representatives (Coreper) was simply the latest reminder of how consistently the EU has been perceived as a model for ASEAN's institutional development. Once the skies had cleared, the meeting subsequently took place, but it may take longer for the profile of this new institution within ASEAN to emerge from the dust stirred up by debates among its members as to how the regional group should move forward.

The purpose of this article, therefore, is to compare some decision-making structures of the ASEAN Charter (ASEAN, 2008) with those contained in the Treaties of the EU. As the ASEAN Charter and the Lisbon Treaty are now functioning, the time is opportune to compare two major regional organizations attempting to make a leap towards a new plateau of integration. Comparison is justified also because the ASEAN Charter included some decision-making structures whose format and nomenclature are modelled on those

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[1] The invitation was issued by the European Commission and German government. The European Commission provides funding to promote 'institutional capacity building' including officials' visits and exchanges (Jetschke and Murray, 2012).

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of the EU (Jetschke and Murray, 2012). For example, a three-pillared structure echoes a similar format to the Maastricht Treaty; ASEAN's new legal personality is similar to that of the EU; and a CPR in ASEAN resonates with, but does not replicate, the EU's Coreper. Despite, or perhaps because, the ASEAN Charter is quite ambitious (in terms of its own context), the familiar question is again raised of whether the EU can, or should, be a template for integration within ASEAN. In this article, we explore the arguments for and against the EU being examined as an institutional analogue for ASEAN's own development.

At the outset, it is worth reiterating not only the potentially far-reaching implications of the ASEAN Charter, but also the rather pessimistic atmosphere that surrounded its adoption. First, the original recommendations of the ASEAN Eminent Persons Group (2007) had been watered down and, second, the Singapore summit where the Charter was adopted was preceded by serious riots and examples of government repression in one ASEAN member state: Myanmar. Television pictures allowed these images to receive global publicity. Surprisingly, in view of the rhetoric of revulsion which followed events in Myanmar, it was not excluded from the summit, which 'cast a long shadow on ASEAN's fortieth anniversary celebrations' (Caballero-Anthony, 2008, p. 75). Indeed, it has been argued that the 'continued emphasis on non-interference obstructs ASEAN and its member states from responding to regional crises, politically and on human rights grounds' (Stensland *et al*., 2012, p. 8). Third, although the language of the Charter, and indeed its very existence, suggest many new commitments, the devil may prove to be in the detail – and the allocation of resources. ASEAN is given a legal personality for the first time and this will affect how the organization is viewed in the domestic legislation of its member states. Institutional innovations are intended to enhance regional co-ordination: summits now take place twice a year instead of once; a new ASEAN Co-ordinating Council was established; a Human Rights Body was set up; and a CPR potentially plays a major role in providing both co-ordination and continuity. The CPR is composed of ambassadors accredited to ASEAN in Jakarta. Among their functions are: to 'support the work of the ASEAN Community Councils'; co-ordinate ASEAN national secretariats; 'liaise with the Secretary-General of ASEAN'; and 'facilitate ASEAN co-operation with external partners' (ASEAN, 2008, Article 12). An overall aim of the Charter is to make ASEAN more of a *rules-based* organization, although, in the absence of effective compliance mechanisms, it is difficult to imagine that past voluntary, and consensual, modes of decision-making will change overnight. Admittedly, cases of non-compliance will be referred to a summit, although one cannot be too sanguine about this either since the Singapore summit of 2008 suffered the embarrassment of withdrawing an invitation to a United Nations envoy to report on Myanmar in the face of the strident but solitary opposition of Myanmar. The decision to include a human rights body in the Charter was commended, although no provision was made at the time for its functioning, or for selecting its membership, allowing doubts to be entertained about its potential effectiveness, especially given the lack of enforcement mechanisms. Non-governmental organizations remain concerned about the narrow focus of its terms of reference (FIDH, 2009). The generally 'permissive' attitude adopted towards Myanmar called into doubt the seriousness with which ASEAN tackles human rights violations, or the capacity to address them, despite evidence of considerable disquiet by some ASEAN members. Recent developments in Myanmar suggest some progress on human rights issues,

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however tentative. Indeed, the Myanmar Permanent Representative in August 2012 'conveyed that the Government of the Republic of the Union of Myanmar is working closely with other ASEAN Member States and on the right course on its democratisation process' (ASEAN, 2012a).

In an Asian context, the credibility of ASEAN is, arguably, at stake. Other major actors are posing economic challenges in the region; and the ability of ASEAN to harness the collective economic and political resources of its member states is being tested as never before. Optimistically, the Charter provides opportunities for action, and it is a document that can be adapted and amended in the light of new circumstances. The *sine qua non* for success will be political will: how far can ASEAN go towards creating a polity of nations in its region? How appropriate is it for ASEAN to adopt the language of the EU's institutions – and is this to be seen as an effort to emulate the EU's experience? These questions we address here and, in particular, we examine the Committee of Permanent Representatives in each region. In its European manifestation, Coreper crystallizes the essential spirit of political integration in the EU because, uniquely, it synthesizes the discrete interests of Member States, on the one hand, and the common 'European' interest on the other. It therefore provides a litmus test comparison for ASEAN: what would need to change in ASEAN for a similar success to be recorded? And what has changed so far?

Our argument proceeds in three steps. First, we chart the EU's institutional development from its essentially economic origins and rationale as a 'common market' to its current status as a 'union' embracing political and security objectives. Second, we examine ASEAN's institutional architecture and, in particular, discuss the implications of those innovations in the ASEAN Charter that appear to invite comparison with the EU's policy-making process. Third, we compare the two regional organizations by assessing a 'zone of discretion' between setting ambitious but realistic goals for ASEAN's greater regional integration, and adopting ambitious structures that might be inappropriate to ASEAN and that could lead to both frustration and disillusionment.

I. The Unique Context of the EU's Institutional Development

At the outset, the risks of comparing ASEAN with the EU need to be acknowledged. The 'new regionalism' studies have at times played down the idea of the EU providing a template for regional projects outside of Europe (Acharya and Johnston, 2007; Warleigh-Lack and Rosamond, 2010). Instead of the legalism, elaborate institutional framework and distinctive supranational characteristics of the EU, 'new regionalism' posits a broader range of modalities, largely setting aside the neofunctionalist and neo-realist theoretical canons of European integration. In particular, as the EU has become more preoccupied with its own governance, its crises in the eurozone and unemployment more broadly and its popular legitimation, the gap between itself and regionalism projects in the rest of the world has widened (Beeson, 2011; Mahbubani, 2008, 2011). Many other regional projects can claim an institutional structure that is still vestigial and, therefore, any concerns about 'constitutionalizing' their systems of regional governance would be premature and could even be regarded as European 'integration snobbery' (Murray, 2010).

Yet, however much we may distinguish between the EU experience and experiments with regionalization in other parts of the world, the EU has remained the focus of much scholarly exchange (Murray, 2010; Schmitter and Kim, 2008). Explicitly, the conclusion

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is often reached that due to Europe's unique constellation of factors – economic, political, historical – that experience or 'model' is simply not appropriate for non-European contexts and their specific economic, political and historical experiences (Acharya and Johnston, 2007; Murray, 2008; Stanley Foundation, 2008). Implicitly, without any overt reference to the EU, regional integration schemes in non-European settings have often been measured against a tacitly acknowledged 'gold standard' set by the EU and are found to be deficient. Due to entirely different socio-economic and politico-historical contexts, the European experience is simply not relevant. Yet there has been recognition that new regionalism and EU studies share research agendas and cross-pollinate regarding process, norms and practices (Acharya and Johnston, 2007; Murray, 2010; Warleigh-Lack and Rosamond, 2010). At the same time, there remains an absence of micro-level comparisons, of how individual institutions or committees work within regional bodies, and how they might influence each other, and this article seeks to redress this lacuna.

Moving on from these comments and caveats, we turn to our own central theme: given attempts, for example, to model ASEAN's CPR on the EU's Coreper, can Coreper's uniquely consensual modus operandi be replicated by ASEAN simply by institutional mimesis? This enables us to ask to what extent ASEAN and the EU are, respectively, developing into similar *polities*? This question is raised not only against a familiar background of regionalism, but more immediately regarding the EU's role as a global and normative actor. Here, a key characteristic of the EU's influence is its ability to induce regional integration schemes in other parts of the world. This 'power by example' is arguably a core component of the EU's normative role in a global context. Part of this process sees regional projects, such as ASEAN, being urged to borrow institutional templates from the EU and apply them in very different economic and political contexts (Jetschke and Murray, 2012).

In the case of the EU, this task allows us to exploit the unique progress made towards a polity. Our attention is drawn towards a long-established and smoothly operating policy-making process in which governments play their part alongside interest groups, regional representations, political parties, civil society and public opinion. This approach assumes that decision-making transcends state borders and operates at discrete levels of authority, for example, in the multi-level governance approach (Hooghe and Marks, 2001) underwritten by subsidiarity. Such an approach also assumes a relatively high level of institutionalization so that formal channels of decision-making by disinterested experts are privileged over informal meetings between politically committed power brokers. Although the latter may sometimes provide rapid solutions, the former provide greater predictability and consistency. This contrast is reflected in the divergent experiences of the EU and ASEAN.

However, institutionalization is not in itself the whole story. Creating institutions is relatively easy: what matters is the political significance attached to these institutions, the role they are called upon to play and the means available to achieve their objectives. In this respect, the EU is well-endowed with a plethora of institutions, most of which are not only accorded some significance by national governments with whom they interact, but also constrain these governments in formulating and implementing policies at the regional level. In ASEAN, as in the Southern Common Market (Mercosur) and the African Union, institutions have sometimes been created according to what may appear to be a European template, but the anticipated osmosis whereby these new institutions might be imbued

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with significance comparable to their EU analogues does not materialize[2] and, indeed, in the case of ASEAN, it is imperative to avoid mistakes made in Europe (Wong, 2012).

The European Context: Is It Sui Generis*?*

In assessing whether ASEAN can, or should, emulate EU decision-making processes, a key question that lies at the heart of European integration theory discourse is that of the EU's uniqueness. Is the EU *sui generis*? This question has impinged on attempts to theorize about integration in comparative regional contexts. The potential transferability of the EU experience depends on whether factors specific to (originally) western Europe are essential prerequisites for the integration process or whether integration could proceed elsewhere based on a different set of factors. This argument requires us to identify factors that are necessary or sufficient for political integration to take place. While we can probably identify factors that have guaranteed the success of European integration, it is a different matter to say whether these or merely analogous factors would be necessary for regional integration to proceed elsewhere. What makes the question all the more difficult is that regionalism schemes in other places have not achieved the success achieved in Europe – at least until the 21st century which is currently overshadowed by the eurozone crisis.

If the emergence of a polity in the EU is attributable solely to factors that are uniquely present in Europe, the chances of its transferability to ASEAN, even as a tentative template, seems remote. So we need to ask whether EU political integration has been dependent on conditions that are uniquely present in Europe. Two themes are pertinent here. First, we can trace the roots of integration in western Europe to the 'inadequacy of the state' (Wallace and Wallace, 2000, p. 47), which differs from ways in which the state might be seen as inadequate in some ASEAN countries. As prosperity and extensive welfare states developed in western Europe, the state found itself under pressure to perform its quintessential functions of providing welfare and security to an extent that was increasing exponentially and which lay far beyond its capacity to deliver. In other words, an expectations–capability gap had arisen due largely to notions of a Westphalian state system needing to confront an increasingly post-Westphalian world order, resulting in a reliance on transnational co-operation. In this way, states drew strength from each other and prolonged their own survival. As Milward (2000) has argued, the state was rescued from its own demise by the novel mechanisms of European integration. The security concern was exacerbated by the cold war (until 1990) and thereafter by more diffuse threats such as terrorism, environmental degradation, cross-border trafficking and ethnic conflict. By the 1990s a modus vivendi had evolved whereby the EU took care of some sectors of policy-making while the nation-state retained control over others.

Second, factors specific to western Europe may account for the progress of a would-be polity in this region. Historical experiences of major conflicts created a strong desire to devise collective security arrangements (supported and activated by the United States, unlike the hub and spokes approach in Asia), although individual states pursued contrasting solutions to their own security ranging from neutrality to military alliances.

[2] See, for example, the *Journal of European Integration*, Vol. 32, No. 6, 2010.

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However, behind these divergent security postures lay a neat balance often based on geopolitics. Furthermore, Europe was unique in its overlapping confluence of high population density and numerous national borders, although there are parallels in Asia now. Jealously guarded notions of national sovereignty, and historic rivalry, sometimes hardened by conflict, made functional co-operation necessary to overcome the challenge of geographical proximity. Moreover, a commitment to liberal democracy became a badge of Europe's identity, separating it from the communist east but then providing the vehicle for a subsequent 'return to Europe'. Notions of the 'welfare state', although differently interpreted across the continent, take as their starting point an assumption that the state (or society) has a duty to protect the individual 'from the cradle to the grave' from the wilder excesses of the market. Europe is not unique in espousing the concept of a welfare system, but it is perhaps *the* defining characteristic of European society (Moxon-Browne, 1997, p. 30). EU social policy acknowledges that citizens needs protection from the cross-border implications of economic integration. And finally, despite its imperfections, the concept of EU citizenship reflects a value-laden consensus that does not exist in other regional organizations. Although the significance and implications of EU citizenship are still hotly debated, EU law and the European Court of Justice provide a transnational framework for the protection of many citizens' rights, unmatched elsewhere, without needing to invoke overtly the concept of citizenship (Moxon-Browne, 2000, p. 190).

II. The Major Features of ASEAN's Institutional Development

This section seeks to examine the features of ASEAN countries that support or militate against regional integration, either economically or politically. There is the diversity of ASEAN states in terms of territory and levels of economic development and prosperity that potentially undermines the possibility of a united body. There are considerable variations among ASEAN countries in terms of political regime, ranging from authoritarian to democratizing, and variation of geographical dispersal from large land masses to islands. There is a relatively low level of economic interdependence and inter-regional trade with 25 per cent for ASEAN and 65 per cent for the EU (ASEAN, 2010b). There exist contrasts in terms of religion, civic and political culture. In tandem with competitive there coexist collaborative strategies towards foreign direct investment and trade policies. Key ASEAN principles such as consensus, unanimity in decision-making, non-interference in domestic affairs and rejection of supranationalism have all combined to render ASEAN regionalism distinctive, and in its own way, *sui generis*. This renders EU modes of decision-making at best impractical, and at worst illusory. The notion of ASEAN as a 'serious regional player' (Ong, 2007) and a driver of regional security dialogue is evident in the ASEAN Regional Forum. Yet there have been countervailing forces (for example, the potentially hegemonic role of China externally, or human rights abuses in Myanmar, internally) that tended to thwart these ambitions. Notions of transnational citizenship or a nascent regional identity remain muted at best. Like the EU, however, ASEAN is characterized by historical experiences of major conflicts that created a strong desire by Indonesia, Malaysia, Singapore, the Philippines and Thailand to form a regional body in 1967, with the objectives to accelerate economic growth, social progress and cultural development and, crucially, to manage intra-regional conflicts. Unlike western Europe, different views of regional identity and hegemonic power were evident on the part

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of the United States, which chose a bilateral rather than a multilateral route in Asia and so did not support ASEAN or an Asian-style Nato treaty organization (Hemmer and Katzenstein, 2002).

Although it did not amount to the devising of collective security arrangements, nevertheless ASEAN – and the ASEAN Regional Forum and the East Asia Summit – brought together apparently divergent security postures with concerns firmly based on regional geopolitics, where the United States remains the security guarantor. There is little evidence of transnational support for a welfare state among ASEAN countries, yet the ASEAN Charter seeks to eliminate poverty. Neither is there one, single Asian regional body, but rather a plethora of regional groupings and alliances ranging from ASEAN to the ASEAN Regional Forum, the East Asia Summit, the Asia Pacific Economic Co-operation (APEC) forum and, more recently, the TransPacific Partnership. These are distinguished by either economic or security objectives, but not an overlapping of both.

Aw (2009, p. 1) characterized the ASEAN Charter as having some ambitious goals, 'including turning ASEAN into an EU-style community whose member countries function as a regional bloc and seek a more rigorous role in global affairs', and it is here that ASEAN's CPR is developing a role. Aw also pointed to challenges for ASEAN relating to the need to respect the principles of non-interference and of consensus. These principles constitute the most important difference between the EU and ASEAN with regard to sovereignty and the state. The establishment of the ASEAN Commission of Human Rights may well constitute a step toward both a form of institutionalization and recognition of the normative aspects of human rights, yet ASEAN remains distinctively intergovernmental. Here we see the importance of the political will of the individual member states. Much has been, and can be, achieved through an intergovernmental forum, and ASEAN's history attests to that. Yet it remains a regional player surrounded by – and linked to – larger and more important players in ASEAN Plus Three (China, South Korea and Japan), and the external hegemon, the United States. In creating a single market and ASEAN Free Trade Area, there are considerable advances in achieving a single market base, a competitive economic region, equitable economic development and integration with the global economy (ASEAN, 2010a, p. 13), although problems remain with the removal of non-tariff barriers.

The ASEAN Context: Is It Sui Generis*?*

ASEAN's institutional development has been characterized by important treaties that establish effectively a code of conduct between its members. The major agreements are the Zone of Peace, Freedom and Neutrality Declaration of 27 November 1971, whereby the members were committed to 'exert efforts to secure the recognition of and respect for Southeast Asia as a Zone of Peace, Freedom and Neutrality, free from any manner of interference by outside powers' and to seek to broaden co-operation to contribute to strength, solidarity and a closer relationship. The second is the Declaration of ASEAN Concord of 24 February 1976, which sought to develop political co-operation through summits; the peaceful settling of intra-regional disputes; extradition agreements; and the harmonization of views and positions. The third, signed on the same day as the second, is the important Treaty of Amity and Co-operation in Southeast Asia, outlining the central principles of mutual respect for one another's sovereignty; non-interference in internal

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affairs; the peaceful settlement of intra-regional disputes; and effective co-operation. The Southeast Asia Nuclear Weapons-Free Zone agreement of 15 December 1995 provides for a Commission and Executive Committee.

Yet despite these documents, and important advances in the ASEAN Economic Community, criticisms have persisted that ASEAN is not efficient, or relevant, as long as it is not united on its future development and lacks permanent and specific institutions. At the same time, some see a new Asian identity developing and clear efforts to deal with the global economic crisis (for example, Tay, 2009; Pempel, 2005).

Although ASEAN's development has been halting at times, it is has achieved significant objectives regarding co-operation among Northeast Asian nations. The first is the creation of the ASEAN Regional Forum – the only regional dialogue facility for discussion of security issues in the Asia Pacific region and that involves other interested players, such as the United States, the EU and Australia. The second is the establishment of ASEAN Plus Three, whereby China, Japan and South Korea meet with ASEAN in a largely collaborative fashion (Tay, 2009). This grouping arrives at agreed positions and stances in the Asia Europe Meeting, and with East Asia Summit participants. The fact that ASEAN has constituted a regional body as an interlocutor with the EU since 1980 is also important, as it is the most effective regional interlocutor in the region.

We have argued above that creating institutions is relatively easy: what matters is the political significance attached to these institutions and the role they are called upon to play. The current financial crisis on a global scale appears to provide a fruitful context for the recognition of the political significance of leadership summits and joint commitments. Following the 1996–97 Asian financial crisis, there was recognition of the need to work collaboratively in ASEAN. One such example of this co-operation is the creation of the Chiang Mai currency swap initiative, which established a network of bilateral agreements to swap and repurchase central bank reserves among ASEAN Plus Three countries, 'stimulated by the system of EMU in Europe [. . .] but framed within non-Western norms' (Gilson, 2004, p. 197).

III. Comparative Aspects and the 'Zone of Discretion'

The history of ASEAN is of an essentially intergovernmental organization of states motivated by the desire for peace, stability, mutual support and economic co-operation. The objectives of the ASEAN Charter encapsulate the history of ASEAN and the new objectives that it has set itself. The document is therefore a unique combination of the two elements of the zone of discretion discussed above – namely setting ambitious but realistic goals for ASEAN's greater integration; and adopting ambitious structures that could well prove to be less than appropriate to ASEAN in terms of short- to medium-term achievements.

The ASEAN Charter is ambitious within the context of its own objectives. It set itself achievable goals, if supported by political leadership and resources. What then are ASEAN's potentially realistic goals? A long-time observer of ASEAN suggests:

> We should hope first to see steady implementation in ASEAN's existing plans. Secondly we must expect the organisation to continue to help keep the wider region at peace and to be inclusive, without contention among rising rivals. Thirdly, we can also hope for ASEAN to play a role in shaping Asian responses to the global crisis. (Tay, 2009, p. 1)

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Park and Wyplosz (2008, p. 135) summarized comparative aspects of European and East Asian regionalism succinctly, and these can also be applied to Southeast Asia. First, they considered that Europe's regionalism is motivated by a desire for political integration that has no counterpart in East Asia. Unlike EU construction institutions of transnational governance, East Asian regionalism has been 'weakly institutionalized'. As we have argued in this article, they recognized that the existence of transnational or supranational institutions is not sufficient for regional integration to succeed, as a ceding of sovereignty is essential and this remains the core issue in Southeast Asian regionalism, characterized by consensual intergovernmentalism. The role of key actors is pivotal – success depends on their courage and commitment. Park and Wyplosz understand that East Asian integration – and we apply this comment here to ASEAN – is a 'multi-polar process in contrast with the alliance of key nations like France and Germany or with a single hegemonic power'.

It has been suggested that attempts at reform of the global economic institutions, such as Asian representation at the International Monetary Fund (IMF) and G20, reduce the pressure for Asia to build up its own regional institutions, such as the Chiang Mai Initiative and the East Asian Free Trade Area (Rathus, 2009, p. 1). Furthermore, although the Chiang Mai Initiative was extended in 2008 into the Chiang Mai Initiative Multilateralization to be used as a form of currency protection in times of crisis, it remains as yet untried.

Proposals in recent years for an Asian or an Asia Pacific community reflect the desire for ambitious regional bodies (Soesastro, 2009; Rathus, 2009), as well as a frustration with existing architectures. The most ambitious were proposed by then Australian Prime Minister Kevin Rudd in 2008 and then Japanese Prime Minister Yukio Hatoyama in 2009. Although scholars may agree that ASEAN will feature in attempts to create a new regional architecture, there are few proposals that it should constitute a regional leader in these discussions (Stensland *et al*., 2012). Toh (2009) argues, however, that ASEAN should be the driving force of economic integration in the creation of an Asian Economic Community. The roles of the United States and China, however, remain pivotal in all security discussions.

There is discussion of the EU experience as having some limited relevance, but general agreement that the EU is not a model or yardstick (for example, Stanley Foundation, 2008). It is interesting that few analysts refer to the ASEAN Charter as the basis for new regional architectures, suggesting that the Charter will be useful for ASEAN itself, but not in a broader context. Perhaps it is sufficient for ASEAN to be *sui generis* onto itself.

Comparing the Coreper and CPR

It is widely accepted in both academic and policy-making circles that the EU is *sui generis*. This uniqueness stems from the degree of sovereignty pooled by Member States in central institutions; by the majoritarian voting system utilized for many policy decisions; by redistributive cohesion policies; and by normative assumptions of the EU's role in the world. Nowhere is this uniqueness more apparent, perhaps, than in a relatively unknown but nevertheless significant institution known as Coreper. This acronym is composed of the initial letters of the institution's French title*: Comite des Representants Permanents*. The membership of Coreper consists of the permanent representatives of the

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Member States in Brussels, as well as their deputies. The latter constitute Coreper 1, while the permanent representatives themselves are in Coreper 2. The latter committee is the more important, being responsible for the remit of the European Council, the General Affairs Council, External Relations, Financial Affairs, and Justice and Home Affairs while Coreper 1 covers all other Council configurations (except agriculture which has its own Special Committee).

In Coreper, officials discuss in advance matters on the agenda for the next Council meeting and try to reach agreement on as many topics as possible. Agreement is reached as to whether matters should be referred to the Council for decision or whether they should be placed on the agenda under the 'A' points system, adopted by the Council without debate. Officials from Coreper 2, and more especially Coreper 1, also play an increasing role in representing the Council on conciliation committees in the co-decision procedure with the European Parliament.

Proposals for adoption by the Council start their deliberative journey in one of about 300 permanent working groups (WGs) established under Coreper. These WGs cover all the areas of co-operation under EU competence. Coreper may appoint some ad hoc WGs to deal with specific proposals if none of the permanent WGs is competent. WGs are comprised of officials seconded from the central administrations of the Member States and/or the permanent representations in Brussels, as well as Commission officials. Even at the level of the WGs, efforts are made to generate proposals that are likely to maximize consensus among the Council members.

Despite the brevity of the foregoing description of the institutional architecture in which Coreper is embedded, one can discern an intricate meshing together of EU and national interests at each level of the deliberative process. The French word '*engrenage*' (normally used to describe the engagement of cogwheels in an engine) provides an apt metaphor for the unique blending of EU and national policy preferences in which Coreper plays a key role (Lewis, 2005). In any discussion of any analogies contemplated between the CPR and Coreper, it is useful to keep in mind not only this institutional fusion of national and EU policy priorities, but also the unique ethos that has developed within Coreper: this could be either an obstacle or an opportunity for ASEAN's own future evolution. In fact, research has shown that Coreper has developed a culture of negotiation, well described by, among others, Lewis (1998, 2000, 2002, 2005) and Hayes-Renshaw and Wallace (2006). Lewis, basing his findings on a set of in-depth interviews with key participants, characterizes Coreper's style as 'tempered by a dense normative environment' and a set of obligatory norms which are equated with an agreed 'best practice'. He sees their behaviour as based on 'diffuse reciprocity', 'thick trust', 'mutual responsiveness', a 'consensus reflex' and a 'culture of compromise' (Lewis, 2002, pp. 291–2). Coreper members see themselves as bound by a 'dual loyalty', stemming, on the one hand, from their representative obligations to their own governments and, on the other, from their commitment to reach a *communautaire* consensus. Thus the Roman god Janus, facing in two directions, is commonly accepted as the most appropriate symbol of Coreper as an institution.

Coreper's characteristic ethos was created within a collective and rather clandestine environment based on arduous work patterns involving many long hours of close interpersonal contact. A sense of intense collegiality has developed out of long meetings, marathon negotiations and shared responsibility for consensual decisions jointly crafted.

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An emblematic feature of Coreper's existence is the role played by social activities (lunches, dinners, picnics in the countryside, and longer trips to the country holding the Presidency) in bonding together members of the Committee. The secret ingredient of Coreper's modus operandi is the extent to which interpersonal relations – forged inside and outside Committee chambers – play a constructive role in facilitating successful decision-making.

The implications of Coreper for the CPR of ASEAN are ambiguous. First, it must be emphasized that the collegiality of Coreper has developed over time and cannot be force fed. Certainly there is evidence of increasing socialization and the development of a culture of co-operation within the CPR, including in meetings with senior officials to prepare summits. Although Coreper is conspicuous within the institutional architecture of the EU, it is also reflective of a broader solidarity and sense of common purpose among Member States that seems to elude ASEAN, although the regularity of meetings to represent ASEAN externally suggests that the external dimensions have served as a motivating factor for CPR solidarity and a possible communitarization could be taking place. In fact, the CPR has actively pursued this particular dimension, with meetings with most of its external relations partners since its inception. Thus if ASEAN attempts a quick fix by a process of what might be termed 'institutional mimesis' there is no guarantee that it will succeed. Neither is it to be assumed that this is what the CPR wishes to achieve. On the other hand, a more benign scenario may be envisaged whereby the relative isolation from their home countries of the CPR members in Jakarta, and their proximity to each other, could create an 'incubatory' environment whereby habits of co-operation, and successful joint policy initiatives, might radiate centrifugally back to the home capital, and act as a dynamo for greater integration among ASEAN members. This creates a socialization that sees it develop confidence and procedures that set it apart from the ASEAN Ministerial meetings and equally from the small ASEAN Secretariat. It also suggests that the CPR enhances institutional development, to complement the small ASEAN Secretariat and possibly develop a more independent role. It has been noted that the ASEAN Secretariat has 75 professional staff, 'making it a challenge to support or drive forward the integration process' and that the establishment of the CPR is 'an important step forward in enhancing the institutional capacity of ASEAN' (Islam, 2012).

The roles of the CPR as set out in Article 12 of the ASEAN Charter are to: support the work of the ASEAN Community Councils and ASEAN Sectoral Ministerial Bodies; co-ordinate with ASEAN National Secretariats and other ASEAN Sectoral Ministerial Bodies; liaise with the Secretary-General of ASEAN and the ASEAN Secretariat on all subjects relevant to its work; facilitate ASEAN co-operation with external partners; and perform such other functions as may be determined by the ASEAN Co-ordinating Council. Here we observe that there is intensive interaction with most ministers and the ASEAN Secretariat, reflected increasingly in the ASEAN annual reports.

The ASEAN CPR was deliberately adopted as a copy of the EU Coreper, according to former Secretary-General of ASEAN Ong Keng Yong in a recent interview (Jetschke and Murray, 2012, p. 185). This is not to assume that the two bodies have similar functions, however. It is the case that the ASEAN CPR, like Coreper, prepares the work of the Councils (Tan, 2010). However, according to Jetschke and Murray (2012, pp. 185–6), it is important to be cognizant of the fact that the outputs and results of these meetings differ considerably: the EU's deliberations result in binding legislation, unlike those of

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ASEAN. It is conceivable that there could emerge a pattern of close linkages in the ASEAN case such as that which exists between the EU's Coreper and the Council of the EU secretariat, and there is evidence that these meetings within ASEAN are proving to be fruitful. Closer relations between the ASEAN CPR and domestic ministries are also developing, as in the EU system in accordance with the road map for an ASEAN Community by 2015 (ASEAN, 2012b). Before it was incorporated into the ASEAN Charter, there was a proposal to elevate the ASEAN Standing Committee 'to consist of permanent representatives from each member-state that are accredited to ASEAN to represent their respective government, and are capable of making decisions on their behalf' (Wanandi, 2007, p. 86) and this desire for accelerated decision-making is reflected in the Charter (Severino, 2010, p. 61). The CPR is not a constituent element of decision-making in the same manner as the EU's Coreper is, as the latter is a part of the EU's co-decision mechanisms within the Council. Staffing levels also differ significantly, with European Permanent Representatives having up to several hundred staff members and the CPR Ambassadors about a dozen at present.

The decision by the CPR to visit the EU and especially Coreper in 2010 can be interpreted as showing a keen interest in learning about how Coreper has functioned over time, and even some admiration for its processes of co-operation. Like the visit of the ASEAN Eminent Persons Group to the Brussels institutions in advance of the presentation of their report on an ASEAN Charter, there remains sustained interest in how the EU works. This can be regarded as not so much a process of emulation as a process of knowledge accumulation, the development of useful linkages and shared experiences, and socialization. Indeed a report on EU support for regional integration suggested that CPR was 'expected to help strengthen and accelerate ASEAN's own Community building process by supporting the work of the ASEAN Community Councils and ASEAN Sectoral Ministerial Bodies (in the preparation of meetings and the pursuit of regional consensus)' (ASEAN-APRIS, 2011, p. 18). These meetings have been taking place regularly since the CPR commenced its work. Although it is too early to comment on the processes of socialization in this regard, they are referred to in both ASEAN and national ministries websites.[3]

The CPR has met twice monthly since its inception in 2009, with, like Coreper, a rotating presidency. In 2011 it began to meet more frequently to reflect an increase in tasks (ASEAN, 2011, p. 24). It has a mandate to facilitate ASEAN's co-operation with external partners and has been actively engaging with ambassadors to ASEAN of non-ASEAN member states in Jakarta. It is the CPR that has been 'convening regular meetings with ASEAN's Dialogue Partners under the ASEAN Plus One framework and the ASEAN Plus Three framework' (ASEAN, 2011, p. 25). The CPR also has working groups that meet regularly, although details are not provided publicly. In addition, the CPR has been developing the external dimensions of ASEAN engagement:

> In addition to convening its own Meetings, the CPR also continues to conduct regular meetings with Dialogue Partners and other external partners with the primary objective of deepening and expanding cooperation and to implement the ASEAN Community Blueprints aimed at attaining ASEAN's goals and objectives. (ASEAN, 2011, p. 24)

[3] See, for example, Permanent Mission of Malaysia to ASEAN, 2/2011 meeting of the Committee of Permanent Representatives to ASEAN. Available at: «http://www.kln.gov.my/web/idn_asean-jakarta/home/-/asset_publisher/8pPT/blog/2-2011-meeting-of-the-committee-of-permanent-representatives-to-asean?redirect=%2Fweb%2Fidn_asean-jakarta%2Fhome».

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Examples include the meeting with American representatives in the aftermath of the 44th ASEAN Ministerial Meeting in July 2011, to finalize the ASEAN–US Plan of Action on bilateral co-operation.[4] To date, three ASEAN Plus Three CPR meetings have taken place, the most recent at the time of writing on 31 May 2012. The CPR has also conducted visits to India (February 2012) and China (August 2011) where there were dialogue meetings and exchanges of views with government officials and academics on regional and international issues. In addition, the CPR is developing dialogues with civil society groups and is in charge of development co-operation issues, each the subject of increased attention by ASEAN leaders. So the pathways to a form of political integration may well be very distinctive for the CPR, but the evidence of its first few years suggests that it is innovative and already seeking to expand its role, scope and impact. It also seeks to clarify the division of roles, rules and procedures between itself and the ASEAN Secretariat (ASEAN, 2012b).[5]

Conclusions: Comparing Institutional Architectures

The structures proposed in the ASEAN Charter which invite comparison with the EU include more regular holding of summit meetings; the regularization of a Council of Ministers; and a CPR. The commitment to peace, stability and co-operation among its members, based on mutual respect as well as a desire for consensus are also evident in comparative perspective. The ASEAN Charter is the culmination of the attempts to keep member states in dialogue despite territorial disputes and an uneasy combination of democratic and non-democratic nations and principles. It is based on the desire to assert ASEAN's role in the region, to continue to maintain a relationship with the United States as the external hegemon in the region and a free trade agreement with the regional hegemon, China.

Some years ago, Ralf Dahrendorf (1989, p. 9) wrote of the importance of the 'habit of co-operation' among the EU's Member States. This habit of co-operation is also evident, although not based on firm institutionalization, in ASEAN too. The habits of co-operation in ASEAN diplomacy, for example, make use of 'informal and non-official relationships and discussions to work out consensual positions behind the scenes, rather than employing lengthy intergovernmental conferences' (Wunderlich, 2012, p. 662).

As we have seen the EU has a history of making progress with its own integration by creating either institutions whose functions are allowed to develop gradually or setting deadlines which, although sometimes imperfectly respected, galvanize the EU towards new levels of integration. From this perspective, ASEAN's adoption of some EU nomenclature for new institutions and processes can be regarded simply as the setting of ambitious goals to create a new dynamism. On the other hand, if the new institutions cannot be operated on the same assumptions as their EU counterparts, there may set in a corrosive sense of frustration and disillusionment – or else a sense of the *sui generis* Asian way that is based on consensus in incipient institutions. Admittedly, any frustration could well be limited to governmental elites since public awareness of, or involvement in, ASEAN's institutions remains limited, though civil society groups do seek to engage with it more actively in recent years. A concise comment that 'ASEAN's regional diplomacy

[4] 'US, ASEAN Set to Forge Real Cooperation', *Jakarta Post*, 17 July 2011.
[5] See EU Delegation to Indonesia and Brunei Darusalaam, 'Visit of ASEAN Committee for Permanent Representatives to Brussels and Berlin', 5–9 July 2012, p. 4.

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has always been inclusive, yet it has not extended this principle of inclusiveness to its own civil society' (Stensland *et al*., 2012, p. 66) sums up this challenge. Despite problems of perceived legitimacy, and despite persisting notions of a 'democratic deficit' within the EU, there is a sense that the public 'ought' to be involved. Hence the attempts at writing a 'Constitution' and hence the features of Lisbon designed to involve national parliaments in draft EU legislation. In sum, there may be a conflict between the *supranational* assumptions underlying the decision-making mechanisms of the EU which ASEAN now partly reflects, on the one hand, and the latter organization's carefully preserved intergovernmentalism, on the other. Yet just as the EU developed its own, at times uneasy, coexistence of intergovernmentalism and supranationalism, so too ASEAN may well develop, through the Charter and especially the CPR, an enduring institutionalization of its decision-making mechanisms and procedures. There is rich scope for future comparative research of the evolution of both committees over time, their working methods and their relationships with the other institutions and bodies within the EU and ASEAN, respectively, as well as in terms of inter-regional relations. Further research is also warranted regarding the development of each body as international actors (Wunderlich, 2012) and the role of the CPR and Coreper in these contexts.

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